

Demo Policy Section: Suspension / Disciplinary

Reference clauses

Clause SUS-01: For recurring issues identified in grievance communications (principal, suspended, suspension, details, gmail), the institution shall maintain a time-bound action tracker and provide category-specific disposal updates.

Clause SUS-02: Where suspension is ordered, a formal memorandum of charges shall be issued within fifteen working days, failing which the authority shall record written reasons for delay.

Clause SUS-03: No suspension shall ordinarily exceed ninety days without documented review by the competent authority and communication of review outcome to the employee.

Clause SUS-04: Departmental inquiry shall be initiated promptly with appointment of an inquiry officer and presenting officer through a written order.

Clause SUS-05: The suspended employee shall be provided access to relied-upon documents unless disclosure is legally restricted and reasons are recorded in writing.

Clause SUS-06: A clear schedule of inquiry hearings shall be communicated at least seven days in advance to ensure procedural fairness.

Clause SUS-07: Requests for adjournment shall be considered only on justified grounds and shall not be used to prolong proceedings unreasonably.

Clause SUS-08: Subsistence allowance shall be released as per applicable service rules and any delay beyond one salary cycle shall be explained in writing.

Clause SUS-09: If criminal investigation is cited as the basis of suspension, periodic administrative review shall continue independently of trial timelines.

Clause SUS-10: Witness examination and cross-examination records shall be preserved and made available in the case file for appellate review.

Clause SUS-11: Final disciplinary order shall contain findings on each article of charge, evidentiary basis, and reasons for penalty imposed.

Clause SUS-12: Penalty shall be proportionate to proven misconduct and shall consider prior service record and mitigating submissions.

Clause SUS-13: Where charges are not proved, reinstatement shall be processed without avoidable delay and consequential service benefits handled under rules.

Clause SUS-14: Where only part of charges are proved, authority shall issue a reasoned order distinguishing proved and unproved allegations.

Clause SUS-15: Appeal rights, timeline, and appellate authority details shall be explicitly provided in the final order.

Clause SUS-16: Records of suspension, review, inquiry proceedings, and reinstatement decision shall be digitized for institutional accountability.

Clause SUS-17: Institution head shall submit quarterly suspension pendency statement to higher authority for monitoring excessive delays.

Clause SUS-18: In case of prolonged suspension, authority shall consider transfer to non-sensitive duties where permissible under service rules.

Clause SUS-19: Complaints regarding procedural irregularity in disciplinary process shall be examined by designated grievance authority within thirty days.

Clause SUS-20: No employee shall be suspended without issuance of show cause notice and opportunity of hearing unless exceptional circumstances are recorded.

Clause SUS-21: Departmental inquiry shall be initiated within a reasonable period after suspension and delay shall be justified.

Clause SUS-22: Employees under disciplinary proceedings shall have access to relevant documents for defense.

Clause SUS-23: Disciplinary action shall not be taken without proper investigation and adherence to principles of natural justice.